
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

IN THE MATTER OF	)	NO. 13-017
	)	
RANDY DRAKE,	)	NOTICE OF HEARING AND
	)	STATEMENT OF CHARGES
RESPONDENT.	)	

COMES NOW the Iowa Board of Behavioral Science (“Board”) and files this Notice of Hearing and Statement of Charges against Randy Drake (“Respondent”), 308 Spruce Ave., West Des Moines, Iowa 50265, pursuant to Iowa Code sections 17A.12(2) and 17A.18(3) (2013). Respondent’s license number 00963 is currently active and expires on September 30, 2014.

A. TIME, PLACE, AND NATURE OF HEARING

Hearing. A disciplinary contested case hearing shall be held on May 1, 2014, before the Board. The hearing shall begin at 9:00 a.m. and shall be located in the Lucas State Office Building, 5th Floor Board Room #526, Des Moines, Iowa.

Answer. Within twenty (20) days of the date you are served this Notice of Hearing and Statement of charges, you are required by 645 Iowa Administrative Code rule 11.12 to file an Answer. The Answer should specifically admit, deny, or otherwise answer all allegations contained in sections C and D of this Notice of Hearing and Statement of Charges. Pleadings shall be filed with the Board at the following address: Iowa Board of Behavioral Science, Lucas State Office Building, 5th Floor, 321 E. 12th St., Des Moines, Iowa 50319.

Presiding Officer. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge from the Department of Inspections and Appeals make initial rulings on pre-hearing matters, and be present to assist and advise the Board at the hearing.

Hearing Procedures. The procedural rules governing the conduct of the hearing are found at 645 Iowa Administrative Code chapter 11. At the hearing, you may appear personally or be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at the hearing. If you need to request an alternative time or date for the hearing, you must comply with the requirements in 645 Iowa Administrative Code rule 11.18. The hearing may be open to the public or closed to the public at your discretion.

Pre-hearing Conference. Any party may request a pre-hearing conference to discuss evidentiary issues related to the hearing. The Board’s rules regarding pre-hearing conferences are found at 645 Iowa Administrative Code rule 11.17.

Prosecution. The Office of Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of pleadings should be provided to counsel for the State at the following address:

Laura Cathelyn
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, Iowa 50319

Ms. Cathelyn can also be reached by phone at (515) 281-6690 or by e-mail at laura.cathelyn@iowa.gov.

Communications. You may contact the Board office at (515) 281-4422 with questions regarding this notice and other matters relating to these disciplinary proceedings. You may not contact individual Board members in any manner, including by phone, letter, or e-mail, regarding this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and the opportunity to participate, such as at the hearing or in pleadings you file with the Board office and serve upon all parties in the case.

B. LEGAL AUTHORITY AND JURISDICTION

Jurisdiction. The Board has jurisdiction in this matter pursuant to Iowa Code chapters 147, 154D, and 272C (2013).

Legal Authority. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 147, 154D, and 272C and under 645 Iowa Administrative Code chapters 13 and 33.

Default. If you fail to appear at the hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 Iowa Administrative Code rule 11.21.

C. CHARGES

Count I

Respondent is charged with conviction of a crime related to the profession or occupation of the licensee or the conviction of any crime that would affect the licensee's ability to practice within the profession, pursuant to Iowa Code section 147.55(5) and 645 Iowa Administrative Code rule 33.2(12).

Count II

Respondent is charged with habitual intoxication or addiction to the use of drugs, pursuant to Iowa Code section 147.55(4) and 645 Iowa Administrative Code rule 33.2(7).

Count III

Respondent is charged with failure to notify the Board of a criminal conviction within 30 days of the action, pursuant to Iowa Code section 147.55(9) and 645 Iowa Administrative Code rule 33.2(16).

D. FACTUAL CIRCUMSTANCES

1. Respondent holds Iowa license number 00965 to practice as a mental health counselor, which is currently active and expires on September 30, 2014.
2. On March 15, 2013 Respondent was convicted of theft in the second degree, a class D felony.
3. Respondent sent notification of the conviction and surrounding circumstances to the Board on or around October 8, 2013.
4. Respondent explained in his notification letter to the Board that at the time of the theft, he had relapsed into active opiate addiction.
5. On November 15, 2013, Respondent was charged with theft in the second degree, a class D felony, with the offense occurring on October 31, 2013.

E. SETTLEMENT

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 Iowa Administrative Code rule 12.1. If you are interested in pursuing settlement in this matter, please contact Assistant Attorney General Laura Cathelyn at (515) 281-6690.

F. FINDING OF PROBABLE CAUSE

On this 6th day of February, 2014, the Iowa Board of Behavioral Science found probable cause to file this Notice of Hearing and Statement of Charges.

Erin Oostenink, MA, LMHC

ERIK OOSTENINK, Chairperson
Iowa Board of Behavioral Science

cc: Laura Cathelyn
Assistant Attorney General
Hoover Building, 2nd Floor
Des Moines, IA 50319